

Court No. - 21

Case :- WRIT - C No. - 2778 of 2023

Petitioner :- Smt. Sushila Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajendra Kumar Mishra

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

It is submitted that without serving provisional assessment notice as well as final assessment order, the respondents are proceeding with the recovery.

Sri N.K. Tiwari, learned counsel for the respondent corporation seeks time to obtain instructions.

List as fresh on 6.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.1.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri N.K. Tiwari, learned counsel for the respondent Electricity Department seeks further time to complete his instructions.

Adjourned to 17.02.2023 as a fresh case.

In case by that time, the instructions are not furnished by respondent no.3 through his counsel, he shall remain personally present in Court alongwith relevant records.

Sri N.K. Tiwari shall inform respondent no.3 about the order passed today so that it is duly complied with.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.2.2023

SL

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajendra Kumar Mishra

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The instant petition has been filed praying for quashing of the demand notice dated 17.11.2022 issued by respondent no.3 for recovery of electricity dues in a case of theft of electricity.

Sri N.K. Tiwari, learned counsel appearing on behalf of respondent Electricity Department, on instructions, states that the impugned demand notice has been withdrawn and that the respondents will pass a fresh order after affording opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.2.2023

SL